

[Where, however, there was a residuary gift to A. for life, with remainder to B., with a general provision against alienation by B. in A.'s lifetime, and a mortgage was made by B., "subject, nevertheless, to the said proviso or condition in the will contained," it was held by the late M. R. that there was no forfeiture inasmuch as the restriction meant in substance "I charge if I can charge, and I do not if I cannot charge," and consequently as B. had no power to charge the property was never charged at all (*d*). But if a memorandum of charge be made and accepted by the person in whose favour it is made, it will be effectual to create a forfeiture although no claim is made under it, and a disclaimer of the charge after it has once been accepted will not avail to prevent the forfeiture (*e*).

An assignment of the assignor's life estate to trustees for the benefit of the assignor, until he otherwise directs, has been held not to create a forfeiture so long as no direction is given by the assignor inconsistent with his actual enjoyment of the life estate (*f*).

Where the forfeiture of an annuity was to arise on the annuitant doing or suffering anything which would deprive him of the right to receive the annuity, a garnishee order served on the trustees was held to create a forfeiture (*g*).]

16. *Insolvency*. — *Insolvency*, while it existed, was not a process *in invitum*, but the act of the insolvent himself (except it was on the petition of a creditor (*h*)), and therefore came within the meaning of a restraint against "alienation" (*i*). But a mere declaration of insolvency to lay a foundation for a bankruptcy was not an alienation or attempt at alienation (*j*). Under The Bankruptcy Act, *1869, a petition for liquidation was a voluntary part- [*104]

Dow & Cl. 232; 5 Bligh, N. S. 75; St. Leonard's H. L. cases, 76.

[(*d*) Samuel v. Samuel, 12 Ch. D. 152.]

[(*e*) Hurst v. Hurst, 21 Ch. D. 278.]

[(*f*) Lockwood v. Sikes, 51 L. T. N. S. 562.]

[(*g*) Bates v. Bates, W. N. 1884, p. 129.]

(*h*) 1 & 2 Vict. c. 110, s. 36; see Pym v. Lockyer, 12 Sim. 394.

(*i*) Shee v. Hale, 13 Ves. 404; Brandon v. Aston, 2 Y. & C. Ch. Ca. 24; Churchill v. Marks, 1 Coll. 441; Martin v. Margham, 14 Sim. 230; Townsend v. Early, 34 Beav. 23.

(*j*) Graham v. Lee, 23 Beav. 388.